

		18. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 19. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval of PAGA settlement is continued to <u>November 19, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review. The parties shall also provide redline copies of the revised notice and proposed order. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
5	De La Riva v. Cirks Construction, Inc. 2023-01339825	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of an \$270,000 class action and PAGA settlement. The court has the following questions and comments: 1. In the March 12, 2026 order (ROA 120), the court stated that the October 16, 2025 order (ROA 107) had identified several issues in the notice and attached forms for the parties to address, but that the parties had not submitted copies of the revised notice and forms to the court. The court ordered the parties to submit copies of the revised notice and forms to the court with the supplemental filings, together with redlines showing the changes made to the documents, and stated that the revised notice and forms should address all of the issues identified in the October 16, 2025 order. The following issues identified in the October

		16, 2025 order have not been addressed in the revised notice and attached forms: a. The effective date of the Participating Class Members' Release in section 3(9) is still inconsistent with the release in paragraph 5 of the amendment to the settlement agreement and with the effective date of the Aggrieved Employees' PAGA Release in section 3(10) of the notice. 10/16/25 Order (ROA 107) No. 33. b. The paraphrased release in section 3(9) of the notice has not been removed. 10/16/25 Order (ROA 107) No. 34. c. The effective date of the Aggrieved Employees' PAGA Release in section 3(10) is still inconsistent with the release in paragraph 5 of the amendment to the settlement agreement and with the effective date of the Participating Class Members' Release in section 3(9) of the notice. 10/16/25 Order (ROA 107) No. 35. d. The paraphrased release in section 3(10) of the notice has not been removed. 10/16/25 Order (ROA 107) No. 36. e. Only one of the "[need details]" phrases in section 7 has been replaced with the relevant information. 10/16/25 Order (ROA 107) No. 40. f. The last two bolded sentences of the second paragraph of the objection form have not been removed. 10/16/25 Order (ROA 107) No. 52. g. The method of transmitting the objection form stated in the objection form is still inconsistent with the settlement agreement. 10/16/25 Order (ROA 107) No. 53. h. The method of transmitting the exclusion form stated in the exclusion form is still inconsistent with the settlement agreement. 10/16/25 Order (ROA 107) No. 50. 2. A certified copy of the Spanish-language notice is not attached to the proposed order as an exhibit. 10/16/25 Order (ROA 107) Nos. 55, 59; 3/12/26 Order (ROA 120) No. 9. 3. The proposed final approval hearing date should be stated in the proposed order. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended</u>
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		<u>settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
6	Flores v. KML Services, Inc. 2024-01375907	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of an \$485,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. In the March 5, 2026 order (ROA 104), the court ordered the parties to provide, <i>inter alia</i>, the estimated average individual PAGA payment. 3/5/26 Order (ROA 104) No. 4. This has not been done. 2. In the March 5, 2026 order, the court ordered plaintiff to provide his total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). 3/5/26 Order (ROA 104) No. 5. Plaintiff states he anticipates receiving \$498.85 as his individual class payment and no individual PAGA payment. Does plaintiff anticipate receiving any compensation for any individual claims? 3. The "Released Parties" provision in paragraph 1.41 of the settlement agreement is unclear and appears to be missing words. To whom does subsection (iii) pertain? Is there a word missing between "parents, subsidiaries" in subsection (ii)? Is there a word missing between "subsidiaries;" and "(iii)"? Is there a word missing between "partners, managers"? 4. The parties should provide legal authority supporting the last sentence of paragraph 7.6 or that sentence should be removed. 5. In the March 5, 2026 order, the court stated that while it will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. Plaintiff's counsel states that counsel is not aware of any unique circumstances. Supp. Brief (ROA 111) at 7:7. The court preliminarily finds